# Referral Partner Agreement

**This Referral Partner Agreement** ("Agreement") is entered into as of the date of the last signature below (the "Effective Date") by and between:

- **Shipo LLC**, a Delaware limited liability company with its principal place of business at 310 Cornell Dr, Wilmington, DE 19801 ("Shipo" or "Company"); and
- _____, with its address at

  _____ ("Partner").

Notices to Partner may be given at _____. Notices to Shipo may be given at ophir@shipousa.com.

Shipo and Partner are each a "Party" and together the "Parties."

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## Summary of Terms

This summary is for orientation only. **Sections 1 to 11 below are the operative terms of this Agreement, and where this summary and a numbered section differ, the numbered section governs.** A clause reference is given for every line so that each one can be checked against the text it summarises.

**What Shipo pays Partner.** Two separate amounts, and they are additive — earning one never reduces the other (3):

- A one-time **$300 USD** signup bonus for each referred client that signs a Shipo services agreement and pays its first invoice. Paid once per referred client, never per month and never per order (3.1, 3.3).
- **5% of Net Profit each calendar month for twelve (12) consecutive months**, measured from that client's first paid invoice, calculated on the client's entire account rather than only the service the referral was made for (3.4).

**How Net Profit is worked out.** The total amount invoiced to the client for the month, less only four costs: freight and carrier charges, packaging and prep materials, storage, and payment-processing fees. That list is closed — Shipo may not add a category of deduction without

a written amendment signed by both Parties. Warehouse pick, pack and receiving labor is **not** deducted, which raises the figure Partner's 5% is calculated on (3.5).

**No thresholds and no waiting period.** An invoice of any size qualifies once it is paid. There is no minimum invoice amount and no minimum number of orders, units or months, and nothing further need elapse before the signup bonus becomes payable (3.1, 3.2, 3.10). Every Qualified Referral earns the same terms; there is no promotional, launch or founding tier (3.11).

**When Partner is paid.** A monthly statement in the Shipo partner portal shows, for each referred client and month, the amount invoiced, each deducted cost category, the resulting Net Profit and Partner's share. Amounts shown as payable are paid within **thirty (30) days** of the end of that month. A monthly balance under **$50 USD** rolls forward into the next month and is never forfeited (3.6, 3.7). Partner has **sixty (60) days** to object to a statement, after which it is final as to the amounts it shows (3.8).

**What Shipo can recover.** If a qualifying invoice is not actually paid within sixty (60) days of its date — cancellation, chargeback or refund — nothing is owed on that month. Anything already paid is recovered only by offset against amounts next becoming payable to Partner, never by a demand for repayment, and any offset balance still outstanding when this Agreement ends is written off (3.9).

**What Shipo expects of Partner.**

- Submit referrals in writing, and only prospects that are not already a Shipo client, in Shipo's active sales pipeline, or another partner's referral within the prior twelve (12) months (2.1).
- Return a completed **IRS Form W-9** before any amount is paid. A balance held back only because the W-9 has not arrived carries forward and is not forfeited (4.2).
- Represent the Services truthfully and only with Shipo-approved materials, and make no guarantee about pricing, results, tax outcomes or savings (5).
- Make no claim that engaging Shipo reduces, defers or otherwise changes any client's own sales-tax, use-tax or nexus obligations. Shipo's Delaware location is a fact about where Shipo operates and is not a tax benefit for the client (5.1).
- Comply with applicable law in all outreach, including the CAN-SPAM Act and anti-spam and do-not-contact rules (5).
- Use Shipo's name, logo and trademarks only as approved in writing (5).

- Keep the other Party's non-public information — including client lists, pricing and commission terms — confidential during the term and for **two (2) years** afterwards (6).

**What Partner is not.** Partner is an independent contractor, not an employee, agent or joint venturer, and has no authority to quote prices, make promises, or sign anything on Shipo's behalf (4.1). This Agreement gives Partner no right of access to Shipo's books, to any rate card, to per-unit prices, or to the cost of any individual order (3.8).

**Who carries the risk if something goes wrong.** Indemnification under this Agreement runs **one way**. If a third party brings a claim arising from Partner's misrepresentations, unauthorized promises, unlawful outreach or breach of Section 5, Partner covers Shipo's losses and reasonable legal fees. Shipo owes Partner no indemnity (9). In the other direction, Shipo's total liability to Partner is capped at the amounts paid or payable under Section 3 — bonuses and revenue share combined — in the twelve (12) months before the claim, and neither Party owes the other indirect or consequential damages (8). These two clauses are the ones in this Agreement least favourable to Partner, and Partner should read them in full rather than rely on this paragraph.

**Ending this Agreement.** Either Party may terminate for convenience on **thirty (30) days'** written notice (7.2). Clients that qualified before termination keep running their full twelve-month window, and Shipo's obligations to report and to pay on them continue until that window expires (7.3). That survival does not apply where Shipo terminates for cause under 7.4.

**Where disputes go.** Delaware law governs, and the state and federal courts of New Castle County, Delaware have exclusive jurisdiction. Each Party pays its own legal fees except where the indemnification in Section 9 applies (10).

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## 1. Purpose

Partner wishes to refer prospective clients to Shipo for third-party logistics (3PL), FBA prep, and fulfillment services ("Services"). Shipo wishes to compensate Partner for qualified referrals on the terms below. This Agreement is non-exclusive; nothing here prevents either Party from working with other partners, referral sources, or providers.

## 2. Referrals

2.1 A "Referral" is a prospective client that Partner introduces to Shipo in writing (email or the Shipo partner form) and that has not, within the prior twelve (12) months, been: (a) an existing Shipo client; (b) already in Shipo's active sales pipeline; or (c) referred by another partner first.

2.2 Shipo will confirm in writing whether a submitted Referral is accepted as a new, non-duplicate lead. Shipo has sole discretion over whether to accept any prospective client and over the terms of any client engagement.

## 3. Qualification & Compensation

Shipo pays Partner **two separate amounts** for a Qualified Referral: a one-time signup bonus (3.3) and a monthly share of net profit for twelve months (3.4). They are **additive** — earning one does not reduce or replace the other.

3.1 **Qualified Referral.** A Referral becomes a "Qualified Referral" when the referred client (a) signs a Shipo services agreement, and (b) pays its first invoice for Services. Both limbs are required: an invoice that issues but is not paid does not qualify a Referral. There is **no minimum invoice amount** and no minimum number of orders, units, or months — an invoice of any size qualifies once it is paid.

3.2 **No waiting period.** Nothing further need elapse before the signup bonus becomes payable. Once a Referral is a Qualified Referral under 3.1 the bonus is payable under 3.3, and Shipo will not withhold it pending any minimum period of client activity, tenure, or continued trading. Shipo's protection against a referred client that does not stay is 3.9 (clawback), which applies in place of any waiting period.

3.3 **Signup bonus.** For each Qualified Referral, Shipo will pay Partner a one-time bonus of **$300 USD**, payable once the conditions in 3.1 are met. The bonus is paid once per referred client, never per month and never per order.

3.4 **Revenue share — 5% of net profit for 12 months.** In addition to the bonus, Shipo will pay Partner **5% of the Net Profit** (as defined in 3.5) earned on the referred client's **entire account**, each calendar month, for **twelve (12) consecutive months** measured from the client's **first paid invoice**. The share is calculated on the whole account, not only on the specific service the Referral was made for.

3.5 **"Net Profit", defined.** For each referred client and each calendar month, Net Profit means the total amount **invoiced to that client for that month**, less only the following direct costs of serving that account in that month:

> (a) **freight and carrier charges** — including shipping charges, carrier surcharges, and return shipping; (b) **packaging and prep materials**; (c) **storage**; and (d) **payment-processing fees**.

**Warehouse labor is NOT deducted.** Pick, pack, and receiving labor are excluded from this calculation, which increases Net Profit and therefore increases Partner's share. No other deduction of any kind is taken — not overhead, not software, not rent, not salaries, not bad debt, and not Shipo's cost of the signup bonus itself. The list in (a)–(d) is closed: Shipo may not add a category of deduction without a written amendment signed by both Parties.

3.6 **Statements and payment timing.** Shipo will make a monthly statement available to Partner through the Shipo partner portal showing, for each referred client and each month: the amount invoiced, the deducted cost categories in 3.5, the resulting Net Profit, and Partner's 5% share. A month's share is calculated once that month's costs are final; where a charge for the month has not yet been priced, the statement will mark the month as provisional and no amount is owed on it until it is finalised. Amounts shown as payable are paid within **thirty (30) days** of the end of the month in which they became payable.

3.7 **Minimum payment and carry-forward.** If Partner's total balance for a month — bonuses and revenue share combined — is **less than $50 USD**, no payment is made that month and the balance **rolls forward** and is added to the following month. A balance of $50 or more is paid. Carried balances are never forfeited.

3.8 **Statement objections and re-examination.** Partner may object in writing to any monthly statement within **sixty (60) days** after that statement is first made available to Partner in the partner portal. An objection must identify the month, the referred client, and the figure disputed. A statement not objected to within that window is deemed accepted and final as to the amounts it shows.

Where Partner objects in time, Shipo will re-examine the disputed month and, within thirty (30) days of the objection, give Partner a written explanation of each disputed figure, including the amount invoiced and the total of each cost category in 3.5 for that client and month. If the re-examination shows an underpayment, Shipo will pay the difference with the next scheduled payment; if it shows an overpayment, the difference is offset under 3.9.

A month marked provisional under 3.6 is not subject to the sixty-day window until the statement for that month is finalised; the window runs from the date the finalised statement is made available.

This clause does not give Partner a right of access to Shipo's books, to any rate card, to per-unit prices, or to the cost of any individual order.

3.9 **Clawback / chargeback.** If the referred client cancels, charges back, or receives a refund such that the qualifying month is not actually paid within **sixty (60) days** of the invoice date, no bonus or share is owed on that month. Where an amount has already been paid to Partner, Shipo will recover it **by offset against amounts next becoming payable** to Partner under this Agreement, and not by demanding a refund. Shipo will identify any offset on the statement for the month in which it is taken.

If this Agreement terminates while an offset balance is outstanding, Shipo may continue to offset it against amounts that remain payable under 7.3. If no such amounts remain, the outstanding balance is written off and Partner owes Shipo nothing.

3.10 **No minimum thresholds.** Neither amount is subject to a minimum. The signup bonus under 3.3 is owed on every Qualified Referral whatever the size of the referred client's invoices, and the revenue share under 3.4 is owed on the Net Profit of every month in the twelve-month window however small that month's figure is — subject only to 3.7, which defers payment of a balance under $50 USD to the following month without forfeiting it.

3.11 **One set of terms.** There is no promotional, launch, or founding tier. Every Qualified Referral earns the same bonus under 3.3 and the same revenue share under 3.4, measured from the referred client's first paid invoice, regardless of when the referral was made or how many referrals preceded it. Any future promotional term must be made by a dated written addendum signed by both Parties.

## 4. Taxes & Independent Contractor Status

4.1 Partner is an independent contractor, not an employee, agent, partner, or joint venturer of Shipo. Partner has no authority to bind Shipo or to quote prices, make promises, or sign agreements on Shipo's behalf.

4.2 Partner is responsible for all taxes on amounts received under Section 3. Shipo will issue an IRS Form 1099-NEC where required; Partner will provide a completed **Form W-9** before any amount is paid. A balance that is withheld solely because Shipo has not received Partner's

W-9 **carries forward and is not forfeited**; it becomes payable with the next scheduled payment after the W-9 is received.

## 5. Partner Conduct

Partner will: (a) represent Shipo's Services truthfully and only using Shipo-approved materials; (b) not make guarantees about pricing, results, tax outcomes, or savings; (c) comply with applicable laws including the CAN-SPAM Act and anti-spam / do-not-contact rules in any outreach; and (d) not use Shipo's name, logo, or trademarks except as approved in writing.

5.1 **No tax-benefit claims.** Shipo's Delaware location means Delaware imposes no state sales tax on Shipo. That is a fact about where Shipo operates and nothing more. Partner will not represent, suggest, or imply that engaging Shipo reduces, eliminates, defers, or otherwise changes a client's own sales-tax, use-tax, nexus, or other tax obligations in any jurisdiction, and will not describe Shipo's Services as producing a tax benefit of any kind.

## 6. Confidentiality

Each Party will keep the other's non-public business information (including client lists, pricing, and commission terms) confidential and use it only to perform under this Agreement. This survives termination for **two (2) years**.

## 7. Term & Termination

7.1 This Agreement begins on the Effective Date and continues until terminated.

7.2 Either Party may terminate for convenience on **thirty (30) days'** written notice.

7.3 **Survival of amounts already earned.** Termination does not end the twelve-month revenue share in Section 3.4 for clients that qualified **before** termination. For each such client, the bonus under 3.3 (if its conditions were met before termination) and the remaining months of its 3.4 window continue to be payable, and the statement and payment obligations in 3.6, 3.7 and 3.8 continue, until that client's twelve-month window expires. No bonus or share accrues on referrals submitted after termination.

7.4 **Exception — termination for cause.** Shipo may terminate this Agreement immediately on written notice, and the survival in 7.3 does **not** apply, where Partner has (a) breached Section 5 or Section 6; (b) made a material misrepresentation about Shipo's Services, pricing, or tax treatment; or (c) obtained a Referral by unlawful outreach. In that event no further

bonus or share accrues from the date of notice, including on clients that had already qualified. Shipo bears the burden of identifying the conduct relied on in its notice. Termination for convenience under 7.2 is not termination for cause and does not cut short 7.3.

## 8. Limitation of Liability

Except for breaches of confidentiality (Section 6) or Partner's indemnification obligations, neither Party is liable for indirect, incidental, or consequential damages, and each Party's total liability is capped at the total amounts paid or payable to Partner under Section 3 — bonuses and revenue share combined — in the **twelve (12)** months before the claim.

## 9. Indemnification

Indemnification under this Agreement runs **one way**. Partner will indemnify, defend and hold harmless Shipo against third-party claims, and against losses, liabilities and reasonable legal fees, arising from Partner's misrepresentations, unauthorized promises, breach of Section 5, or unlawful outreach. Shipo owes Partner no indemnity under this Agreement; Shipo's exposure to Partner is limited to the amounts in Section 3 and the cap in Section 8.

## 10. Governing Law & Disputes

This Agreement is governed by the laws of the State of Delaware, without regard to its conflict-of-laws rules. The Parties consent to the exclusive jurisdiction and venue of the state and federal courts located in New Castle County, Delaware, and each Party waives any objection to that venue on grounds of inconvenient forum. Each Party bears its own legal fees except where Section 9 applies.

## 11. General

Entire agreement; no oral modifications; assignment only with consent; notices in writing; severability; counterparts and electronic signatures (including DocuSign) are valid.

## Signatures

### Shipo LLC

Signature: _____

Name: Ophir Schultz

Title: Owner / Principal

Date: _____

### Partner — _____

Signature: _____

Name: _____

Title: _____

Date: _____